

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST

COMPLAINANTS,

v.

APS EAST COAST, INC.

RESPONDENT.

SUPPLEMENTAL DECLARATION OF PETER F. BLACK

I, Peter F. Black, hereby declare as follows:

1. I am over the age of eighteen and am competent to make this Declaration.
2. I am a Partner at Mills Black LLP, Counsel to the Respondent in FMC Docket Number 23-04, Ports America Chesapeake, LLC and Marine Terminals Corporation-East v. APS East Coast, Inc.
3. Further to my Declaration of March 4, 2025, Mills Black LLP's IT vendor provided additional feedback regarding its investigation and advised that there was a known Microsoft service disruption beginning on March 1, 2025 which affected its core products and services, which Mills Black LLP utilizes in its practice.

4. News reports suggest that a “problematic” code change caused a critical failure of Microsoft’s authentication token system which affected users in both Canada and the United States. This service disruption is reported to have continued through Monday March 3, 2025.
5. I understand authentication tokens to generally permit users to access secure cloud-based services uninterrupted. I understand that a code-based failure of authentication tokens, from a technical perspective, to trigger service access errors, and the locking out of users from cloud-based services.
6. Mills Black LLP utilizes a third-party vendor for its Microsoft licenses and all Mills Black LLP attorneys were locked out of their respective Microsoft account at some point during March 3, 2025.
7. As a result, I believe there was a Microsoft-based technical point of failure for the lack of Respondent’s public and confidential Reply to Complainants’ Exceptions to the Initial Decision in its email of March 3, 2025.
8. I further believe there is good cause for Respondent’s Reply to be deemed filed with the Office of the Secretary on March 3, 2025, or to otherwise be considered timely filed.

I declare under the penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 7th day of March, 2025, in Washington, DC.

/s/ **Peter F. Black**
Peter Fischer Black

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. Gerald A. Morrissey III - *Counsel for Complainants*
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Dated: March 7, 2025

Respectfully Submitted,

By: /s/ **Peter F. Black**

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